

		Therefore, Defendants were required to file and serve any memorandum of costs no later than February 11, 2026 (15 days + 2 court days for electronic service). However, Defendants did not serve their respective Memorandum of Costs until February 19, 2026. (Chance Decl., ¶ 9, Ex. 2.) And, Defendants did not file their respective Memorandum of Costs until February 18, 2026. (ROA 160, 162.) Defendants have not filed an opposition or presented any basis or justification to extend the time for serving and file the Memorandum of Costs. (Jones v. John Crane, Inc. (2005) 132 Cal.App.4th 990, 1012 [“While the court had discretion to excuse the untimeliness, it did not abuse its discretion in failing to do so in light of plaintiffs’ failure to offer an ‘explanation ... for this neglect’”].) Under these circumstances, the Court GRANTS Plaintiff’s motion to strike the Memorandum of Costs filed by Defendants. <i>Plaintiff to give notice.</i>
114	Nguyen vs. Roth Staffing Companies, L.P., 20-01143300	Defendants Roth Staffing Companies, L.P. dba Ultimate Staffing Services, Roth Companies, Inc. (“Roth Defendants”), hereby file this Petition to Confirm the Arbitration Award (“Petition”) issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025. The Roth Defendants pray as follows: 1. That the Court confirm the Arbitration Award issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025; and 2. That the Court direct the Clerk to enter judgment in conformity with the Arbitration Award and dismiss the action as to the Roth Defendants only, with prejudice. Initially, the Roth Defendants cite to 9 U.S.C § 13 as the enabling authority for the requested relief. However, the CAA applies to this Petition, and not the FAA. [... “the United States Supreme Court does not read the FAA’s procedural provisions to apply to state court proceedings.” <i>Cable Connection, Inc. v. DIRECTV, Inc.</i> (2008) 44 Cal.4th 1334, 1351.] To that end, Code Civ. Proc., § 1286 provides, “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with

this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.”

Where a petition to confirm an arbitration award is procedurally proper, dismissal of that petition is not sought, and there is no timely filing seeking to vacate or correct the arbitration award, the trial court is obligated to confirm the arbitration award. [*Darby v. Sisyphian, LLC* (2023) 87 Cal.App.5th 1100.]

The arbitrator must file the award within 10 days after conclusion of the hearing. An additional 20 days to file may be granted in unusually lengthy or complex cases, upon application by the arbitrator. [CRC 3.825(b)(1)]. Here, the award was apparently made 3/14/2025, but only filed by Petitioner in connection with this Petition on 2/27/2026.

Additionally, the arbitrator must serve each party with a copy of the award and file the award together with proof of service on the parties within the time limits stated above. [CRC 3.825(b)(1)] Here, there is no proof of service attached to the actual arbitration award which was submitted with this Petition. (Zimmerman Decl., Ex.B.)

Notably, an arbitration award filed without proof of service on the parties (or proof of actual service) is ineffective as a matter of law. Thus, no judgment can be entered on the award; and the 60-day period for requesting a trial de novo does not begin to run until actual service is made. [*Oats v. Oats* (1983) 148 CA3d 416, 421; *Domingo v. Los Angeles County Metropolitan Transp. Auth.* (1999) 74 CA4th 550, 554—arbitration award mailed to wrong address]

Notwithstanding the irregularities in procedure above, all parties should have notice of the arbitrator’s “award” and this Petition as of 2/26/2027 when the Notice of Petition, Petition, and Declaration in Support of Petition (with the Ruling Granting Motion for Summary Judgment attached as Ex. B) was served.

As there is no opposition or objection (7 months later), the Motion is GRANTED.

The Case Management Conference is continued to October 15, 2026 at 1:30 p.m.

		<i>Moving Party to give notice.</i>
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